

ENACTMENT # 21

CHICKASAW TRIBAL LEGISLATURE

Barney Abbott, Jr., and co-authors Gene Underwood and David Stout of the Finance and Personnel Committee of the Chickasaw Tribal Legislature authored the following bill and it was referred to the Legislative Committee.

A BILL

To make a law establishing uniform guidelines governing personnel administration for all Chickasaw Nation employees. Authority, Chickasaw Nation Constitution Article VII, Section 4, "The Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation."

Be it enacted by the Tribal Legislature of the Chickasaw Nation assembled that this act be cited as the Chickasaw Nation Employee's Code.

This enactment supersedes all previous legislation or policies dealing with tribal employees. It will become effective immediately.

SECTION 2: THE LEGISLATURE FINDS THAT---

ARTICLE 1: Equal Employment

A. Merit System

The employment of personnel and all actions affecting employees shall be based solely on merit, ability and fairness.

B. Non-Discrimination

There shall be no discrimination against employees or applicants for employment. Notwithstanding this provision preference for and employment shall be given to Chickasaws and qualified Indian applicants.

C. Nepotism

The employment of members of the same immediate family shall be avoided insofar as possible. A person shall not supervise an immediate family member.

ARTICLE II: Organization

A. The Governor determines the organizational structure for the Tribe.

B. All positions shall be established in accordance with an organization plan clearly setting forth areas of responsibility and lines of authority.

1. The Executive Department is responsible for periodically reviewing the organization plan/chart and for notifying the Legislature of any changes.
- C. Every employee shall be given the authority necessary to perform his assigned duties.
- D. The duties and responsibilities of every position shall be set forth in writing. Employees will be expected (at minimum) to perform the duties specified in their job descriptions. Job descriptions shall be amended and kept up to date by the immediate supervisors.
- E. Each regular employee's work performance shall be evaluated annually prior to the anniversary date of their employment. The immediate supervisor shall discuss the report with the employee regarding their career and any improvements in performance which appear desirable or necessary.

ARTICLE III: Application and Distribution of Employee Code

- A. This employee code applies only to those employees covered by the merit system. Non-merit employees include directors and those positions supervised directly by the Governor and/or by the Lieutenant Governor. Chickasaw Nation enterprises/businesses shall establish their own procedures by the approval of the Legislature.
- B. Each person, upon his employment with the Chickasaw Nation, shall review an employees code once each year and initial a record signifying this action contained in his personnel file.
- C. If any conflict arises between this employees' code and any federal guidelines, rules, regulations or laws, the federal standards shall prevail and apply.

ARTICLE IV: Time and Leave

- A. Standard Work Week

The standard work week of the Chickasaw Nation shall be five (5) days, Monday through Friday. A standard work week shall total forty (40) hours. Work scheduled shall be based on an eight-hour day, normally beginning at 8:00 a.m. and ending at 5:00 p.m., with a lunch period of one hour. The lunch period may be staggered as determined by the Governor. Differing work schedules are allowable with the approval of the Governor.

B. Irregular Hours

Working hours for professional staff members may be irregular and require night or evening work at the discretion of the immediate supervisor. These staff members shall not be granted compensatory time. In the case of hourly paid employees or clerical employees who are required to work overtime, compensatory time may be granted. Overtime pay shall be avoided in as far as possible.

C. Tardiness

Any employee who is unable to be at work on time for any reason, is expected to telephone their office to report that fact to his immediate supervisor.

D. Holidays

The following federal holidays with pay will be observed by the employees:

1. New Year's Day
2. George Washington's Birthday (President's Day)
3. Memorial Day
4. Independence Day
5. Labor Day
6. Veteran's Day
7. Thanksgiving Day
8. Christmas Day
9. Such other days may be declared by the Governor of the Chickasaw Nation

The following additional conditions are in effect:

1. Holidays must be observed as they occur. They may not be accumulated or used as termination pay.
2. In order to receive pay for a designated holiday, an employee must be at work or in an approved leave status on the work day immediately preceding and the work day immediately after the holiday and must not have been absent without leave either the work day before or after.

Regular and probationary employees are eligible for annual leave and sick leave with full pay subject to the following provisions: Neither annual or sick leave shall accrue except when an employee is actually working or on an authorized leave with pay status. This code regarding time and leave must be applied uniformly to all employees.

The Governor, Lt. Governor or designate, is authorized to approve or disapprove leave requests of employees. An individual leave record for each employee shall be maintained and made a part of each employees' permanent record.

E. Annual Leave

Annual leave means that accrued vacation leave, with pay, which has been earned in accordance with the provisions of this policy.

1. Full time, regular employees shall earn annual leave as follows:

1 - 3 Years -----	10 Days (Two Weeks)
4 - 12 -----	15 Days (Three Weeks)
13 - up -----	20 Days (Four Weeks)

NOTE: AN EMPLOYEE MUST HAVE COMPLETED FOUR YEARS OF SERVICE BEFORE THREE WEEKS IS ACTUALLY EARNED.

EXAMPLE: If an employee went to work on October 1, 1979, on October 1, 1982 an accrual rate of three weeks would begin; however, three full weeks would not have been accrued until October 1, 1983.

2. Accumulation of Annual Leave

Annual leave shall be accrued on a fiscal year basis (October 1 to September 30) for full-time regular employees. Accrued leave must be taken by December 31 or the same year, however, a maximum of 40 hours may be carried forward from September 30, in addition to accrual for October, November, and December. Annual leave may be taken as accrued on a single day basis; however, one five day vacation is recommended. It is recommended that annual leave be scheduled at a time which least interferes with an employee's responsibilities. Extended vacations require two weeks prior approval by the Governor. Requests for single days annual leave shall be submitted in sufficient time to allow for staff adjustments.

3. Annual Leave Limitation

An employee must have completed 90 days of employment with the Chickasaw Nation to be eligible for annual leave. If it is absolutely necessary that an employee be on leave, the leave status will be Leave Without Pay (LWOP).

F. Sick Leave

Sick leave is defined to mean a period in which the employee is incapacitated from the performance of duties by sickness or injury, or for medical, surgical, dental, or optical examination or treatment, or where the employee's presence at work would jeopardize the health of the employee or others.

1. Full time regular employees shall earn one day per month or twelve days per year.
2. Sick leave accumulation shall not be limited.

An employee must have completed 90 days of employment with the Chickasaw Nation to be eligible for sick leave. If it is absolutely necessary that an employee be on leave, the status will be leave without pay. After 90 days, an employee is allowed 25 hours of sick leave per quarter without documentation.

The first time an employee files sick leave in excess of 25 hours in one quarter, the employee will be placed on restriction. When on restriction: (1) the employee, etc. is required to bring documentation from a doctor or dentist in order to file for sick leave. If an employee is requesting sick leave for an appointment, and will be absent for only the amount of time necessary for the appointment, the appointment card or a copy of it will be acceptable. If an employee is requesting sick leave time in addition to the time allowed for an appointment, the employee is required to obtain documentation from a doctor or dentist confirming the amount of time necessary for the employee to be off work; (2) the employee's immediate supervisor will counsel the employee concerning sick leave policies upon return to their work station. The employee will be on restriction for 90 days, regardless of whether that 90-day time period falls in more than one quarter. There shall be no waivers of restriction.

In the event an employee is separated or resigns at any time, he is not eligible for payment of sick leave.

3. Request for Sick Leave
Request for sick leave for medical, optical examination or surgical operation for which an employee has prior knowledge of the anticipated absence, shall be submitted to the immediate supervisor prior to being excused when there is no prior knowledge of absence, appropriate leave forms should be filed upon return to work. Sick leave will be allowed only if the employee has notified or called his immediate supervisor of his absence.
4. Certification of Illness
The immediate supervisor may request medical certification as justification for sick leave.
5. Transfer of Leave
An extended illness, where all an employee's sick leave has been used, accumulated annual leave may be transferred until exhausted at which time the employee will be placed on Leave Without Pay.

G. Maternity Leave

Female employees may be granted maternity leave on the same bases as any other leave, by the Governor not to exceed thirty (30) working days to be taken in one increment. Such maternity leave shall be charged to annual leave or leave without pay in that order.

H. Administrative or Professional Leave

The Governor may grant administrative leave for various purposes that may benefit the Tribe. Administrative leave is not charged against annual or sick leave. It can be paid leave or leave without pay.

I. Military Leave

An employee who is a member of the National Guard or of any of the Reserve components of the Armed Forces of the United States shall be entitled to leave of absence from assigned duties for as many as 15 days in one fiscal year to participate in military training. The employee is entitled to 15 working days pay from the Chickasaw Nation, one day of pay for every normal working day spent in the military (pay does not include Saturday or Sunday unless those are normal working days for the employee while at work for the tribe). Military pay earned has no factor in determining pay received for the 15 working days from the Chickasaw Nation. Leave of absence from assigned duties to participate in military training should be determined by the Governor.

J. Enforced Leave

Enforced leave charged to sick leave, may be granted to an employee for a death or illness in the immediate family.*

*Immediate family-spouse, father, mother, child, brother or sister or other as approved by the Governor, Lt. Governor or designate.

K. Education Leave

The Governor may grant educational leave when it mutually benefits the employee and the Tribe.

L. Leave Without Pay (LWOP)

In order to file for leave without pay (this would occur when an employee has no other leave accrued), an employee must have prior approval which requires sufficient justification for the leave to the employee's supervisor. An employee is considered AWOL if the employee is absent from work and has not received prior approval. When the

employee returns, they must submit acceptable justification for the leave to be considered approved LWOP. If sufficient justification is not submitted, on the first occurrence the employee will be considered AWOL with no pay, be counselled and recorded in personnel file.

On the second occurrence of AWOL without prior approval and sufficient justification, the employee will receive written reprimand. (Recorded in personnel file.)

On the third occurrence of AWOL without prior approval and sufficient justification; the employee will be placed on suspension at the discretion of the department supervisor and will be recorded in personnel file.

M. Leave for Court and Jury Services

When in obedience to a subpoena or direction by proper authority, an employee appears on a regular workday as a witness or a jury member for the federal government, the State of Oklahoma, or a political subdivision, or as an expert witness in their capacity as a tribal employee, the employee shall be entitled to leave of absence for such duty, with regular compensation. When an employee is subpoenaed in private litigation by some party other than the federal government, the State of Oklahoma or a political subdivision to testify as an individual, the time absent shall be taken as annual leave or leave without pay at the employees discretion.

N. Furlough

When the workload is such that an employee or employees are not needed for a period of time or funding is not available, or an employee requests extended time off without pay the employee or employees may be placed on temporary furlough status. Temporary furlough may be for a specific time or until a specific date (e.g., Carter Seminary employees).

Employees that have been involuntarily furloughed shall be recalled in the order that they were furloughed. (Example: First furloughed shall be first to be recalled.) In the event a non-Indian is furloughed, the rule of Indian preference shall prevail.

ARTICLE V: Selection of Applicants

- A. Administration shall make every reasonable effort to attract qualified persons to compete for vacancies. Positions shall be advertised for a period of five (5) working days, except where a position must be immediately filled as determined by the Governor. Such as Carter Seminary or the Drug/Alcohol Center.

- B. In establishing employment lists of eligible persons in competitive jobs for appointment and promotion, certain preferences shall be allowed for Chickasaw citizens. (Must have valid CDIB.)
- C. An announcement, shall be posted for a minimum of five (5) days insofar as practicable, shall specify the title, salary, and nature of the job, and such other information as may be required.
- D. Applications for positions shall be submitted on forms provided by the Chickasaw Nation in the manner specified in the applicable announcements. All information submitted in connection with applying for positions is subject to verification.
- E. A person selected for a position may be required to undergo a medical examination in a manner prescribed by the Governor.

ARTICLE VI: Conditions of Employment

A. Probation

A probationary period of six months normally is required for all new or newly promoted employees. During this period, an employee's fitness and capability to perform the duties of his job are to be evaluated by his immediate supervisor and the Governor. If a probationary employee is not retained, an effort will be for reassignment for another position. However, no appeal is allowed.

B. Classification

Position appointment shall be designated either regular, part-time or temporary. Regular positions are ordinarily of indefinite duration and may apply to full-time or part-time positions.

C. Status Change

Change in status from probationary employee to regular, full-time employee shall be announced to the employee in writing and a copy filed in the employee's personnel file.

D. Conduct

It is mandatory that the employees shall conduct themselves so as to instill confidence in the organization and to minimize public or private criticism or complaints. No employee shall make public or private statements or actions on behalf of the Tribe on any

matters concerning the Tribe or its programs without the express prior approval of the Governor. The image set by the employees reflect a like image of the Chickasaw Nation. Actions of employees which adversely affect these relationships will be reported to the Governor and the employee may be reprimanded, suspended, or in flagrant cases, terminated. Employees shall dress neatly and appropriately in performance of their work.

ARTICLE VII: Personnel Actions

The Governor shall have the responsibility for all personnel actions. The following personnel actions are included:

A. Promotion

Vacated positions shall be filled to the greatest possible extent by the promotion of qualified employees.

B. Transfers

Transfers of employees may be made administratively or in conjunction with an announced selection process. Accrued leave or compatible benefits will be transferable between departments or agencies insofar as possible. The direct transfer of accrued annual leave and sick leave shall be for an employee who transfers directly from either the Chickasaw Nation Headquarters or Chickasaw Housing Authority to another. The earlier starting date of full-time employment will be observed when computing both sick and annual leave so that the transferring employee will not sacrifice additional accruals or maximum dictated by seniority.

C. New Positions

Establishment of salary levels for new positions or new titles shall be approved by the Legislature. The Executive Department has the authority to reorganize work assignments, create positions, abolish positions, change titles and prescribe or change the duties and responsibilities assigned to any positions or employee as needed. A salary may be established by the Governor for a new position on a temporary basis, not to exceed six (6) months. This may be accomplished by detail to special duty, (See Section D) and the salary level for the position must be presented to the Legislature in time for approval before the six (6) months expires.

D. Detail to special duty-when the services of a regular full-time employee are temporarily needed in a position other than the class to which the incumbent is regularly assigned, the employee may be detailed to "special duty", at the discretion of the Governor, to perform the duties of the position to which temporarily assigned for a period not to exceed six months.

- A detail to special duty in no way shall effect the status, title or position held prior to the detail.
- An employee shall not be placed on detail to special duty more than six months in any twelve-month period.
- Pay upon detail to special duty shall not be reduced, but must be increased to at least the minimum rate, but not more than the maximum rate the employee could receive upon promotion to that position. At the conclusion of the detail, pay shall revert to the authorized rate of pay in the employees regular position.

E. Demotion

An employee shall be subject to demotion for the following reasons. Personnel actions of an employee being demoted shall be subject to Article 7, Section 1.

1. If he has been found unsuited for his present position, but may be expected to give satisfactory service in a lower-paying position.
2. If his position has been either abolished or reallocated to a lower paying position and he can not be transferred to a position of equal pay. It shall be clearly indicated on all papers prepared in connection with such a demotion that the demotion in no way reflects on the employee's performance in the previous position

F. Resignation

An employee who desires to end his employment in good standing should submit a written signed resignation at least two (2) weeks in advance, setting forth his reasons for resigning. The governor may agree in writing to permit a shorter period of notice.

G. Dismissals (Terminations)

An employee who is guilty of substantial violation of regulations or who give unsatisfactory service shall be subject to dismissal without advance notice. In such cases the employee, if he desires, may be granted a hearing before the personnel review board. This board is elected by the Chickasaw Nation employees. (See procedures, this section.) A dismissed employee who wishes to have a hearing must request it within ten (10) working days of dismissal. The board will set a hearing date within five working days of the request. The dismissed employee will be notified in the most expedient manner possible. Failure of the employee to appear when

properly notified will close the case. Within ten (10) working days after the hearing a recommendation will be made by the board to the Governor. The Governor will then render a final decision. A written statement of the reasons for the dismissal shall be submitted to the employee affected at the time of such dismissal. If a Chickasaw employee feels that his rights are still being violated in being terminated after the Governor has rendered his final decision, the employee may petition the Tribal Court to review his case. At the petitioning of the Court all evidence, documented copies written or any other pertinent information shall be submitted with petition ten (10) working days after the Governor's final decision. Any of the following acts and/or conduct on the part of any employee may constitute specific grounds for prompt dismissal by the Governor:

1. Incompetence or repeated neglect of duty
2. Unauthorized absence from duty with satisfactory explanation
3. Misappropriation or unauthorized and improper use of Tribal equipment, tools, machines, funds, etc.
4. Flagrant or persistent insubordination
5. Use of intoxicants while on duty (or reporting for duty in an intoxicated state)
6. Conviction under a felony charge
7. Excessive debt complaints
8. Excessive tardiness
9. Employee misconduct as determined by Governor

H. Procedures

The Chickasaw Nation employees shall elect five board members and two alternates from a list of twenty candidates who shall file for office of Review Board Member at the Chief of Staff office. Any regular employee is eligible to seek this office. No staff or supervisors shall serve on the review board. The review board members shall be seated by drawing for the length of term which will run from less than a year to five years. A new board member will be elected each year. After the first election, the election shall be on the regular election in August. The winner will take office October 1.

The Review Board shall not be influenced by the staff supervisor or employees in making their decision. A simple majority of three (3) votes will be the decisive figure or vote.

In the event the employee before the Board feels that outside influence had swayed the Board's decision, the burden of the proof shall fall upon the employee before the Review Board. This employee shall present unimpeachable documentation with their petitioning of the Tribal Court to hear the case.

I. Suspensions

An employee may be suspended from duty without pay for:

1. A period not to exceed twenty (20) working days for disciplinary reason.
2. Pending investigation of charges of extreme financial mismanagement or where the presence of the employee constitutes a hazard to the Chickasaw Nation, if such investigation does not bear out the charges and the employee is restored, he shall be paid for the period of the suspension. An employee suspended due to investigation or litigation shall not accrue annual leave during the period of suspension unless the employee eventually returns to normal active status.

J. Required Notice

1. Before any regular employee may be demoted involuntarily, suspended without pay or discharged, the Executive Department shall provide the employee with:
 - A. A statement of the specific acts or omissions that are the causes, or reasons, for the proposed actions; and
 - B. An explanation of the Tribe's evidence; and
 - C. An opportunity to present reasons why the proposed action is improper and should not take place.
2. Pending completion of this notice and response procedure, an employee may be suspended without warning, with pay to avoid undue disruption of work or to protect the safety of persons or property or for other serious reasons.

K. Reduction In Force

1. If it is necessary to reduce personnel, the selection of employees to be retained shall be based primarily on their relative efficiency and the necessity of the job entailed.
2. At least two weeks' notice prior to dismissal due to a reduction in force shall be given to an employee, except for person employed for a specific limited period of time. Following the notice of dismissal, the employee may receive two weeks severance pay in lieu of working two weeks at the discretion of the Governor.

L. Compensation

1. Each Tribal employee shall be paid a salary or wage in accordance with the compensation plan approved by the Tribal Legislature.
2. Appropriate compensation rates shall be determined on the prevailing local wage or salary scale; not based on Federal or State standards.
3. The compensation plan is not designed to provide pay increases to employees based solely upon length of service.
4. The compensation plan is designed to provide pay increases to employees based upon ability, efficiency and demonstrated support of Tribal goal and objectives.

M. Pay Schedule

Employees will be paid on a bi-weekly basis on every other Friday. Should the payday fall on a holiday, checks shall be issued on the preceding work day.

ARTICLE VIII: Outside Employment

Full time, regular employees shall not engage in outside employment without the approval from the Governor.

ARTICLE IX: Honorariums

An honorarium may be accepted for services performed during office hours if the employee is on approved administrative leave, annual leave or leave without pay status.

ARTICLE X: Fringe Benefits

Full time, regular employees shall have the opportunity to join the health insurance plan in effect offered by their respective employer.

ARTICLE XI: Grievances

It is the policy of the Tribe to anticipate and avoid the occurrence of complaints and grievances of employees, but respond to them promptly if and when they occur. All grievances shall be through the lines of authority and in accordance with employee grievance procedures.

ARTICLE XII: Interest

No employee of the Tribe during his tenure or for one year thereafter shall have any interest or derive personal benefit in any contracts or programs related directly their respective employer.

ARTICLE XIII: Enforcement of Codes

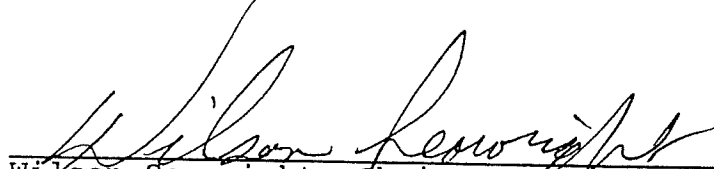
Enforcement of this code is the duty of the Governor, and may include the following:

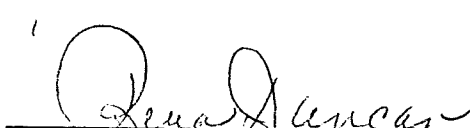
Upon the first infraction of this code not included elsewhere in this document, an employee may receive a verbal reprimand. Upon the second violation, a written reprimand may be presented. The third violation may result in termination.

ARTICLE XIV: Amendments

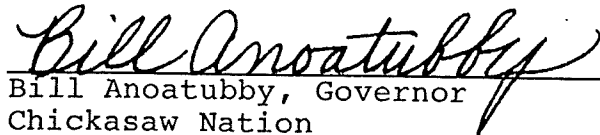
Amendments to the above code shall be approved by the Tribal Legislature and Governor.

Executed this 19th day of February, 1988, in regular session of the Chickasaw Tribal Legislature, by a vote of 12 Ayes, 0 Nays and 1 Abstentions.


Wilson Seawright, Chairperson
Chickasaw Tribal Legislature


Rena Duncan, Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
Chickasaw Nation

Date

ENACTMENT # 21

CHICKASAW TRIBAL LEGISLATURE

November 20, 1987

Barney Abbott, Jr., Chairman, Gene Underwood and David Stout Finance and Personnel Committee authored the following bill and referred to the Legislative Committee.

A BILL

To make a lawful act that shall prohibit all tribal employees to become involved in any type of political activities while on administrative leave, sick leave or excused leave.

Be it enacted by the Tribal Legislature of the Chickasaw Nation assembled this act shall be cited as the "Chickasaw Employees Fairness Act".

SECTION 2: The Legislature finds that:

(1) Employees shall not be politically active for any candidate. There shall be no campaigning or passing out any type of campaign material, etc. while drawing pay for tribal employment or regular tour of duty...

(2) Employees with duties that require the use of tribal motor vehicles shall not be politically active in any manner while traveling through the Chickasaw Nation.

(3) Employees of the Chickasaw Tribal shall not be ballot counters or watchers at any tribal elections.

SECTION 3: The Legislature finds:

(1) An employee who is found guilty of breaking this law will be suspended ten (10) days without pay. Second offense shall be termination.

(2) This bill in no way prevents any tribal employees from expressing their political views in writing or open campaigning for a candidate of their choice while they are, on their own time.